



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7011 (EXTENSION)
EIGHTH REVISION September 12, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7011 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

J. Suzanne Heberich
Alan F. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 15 1992

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Russell-Stanley Corporation
Red Bank, NJ

November 27, 1991



U.S. Department
of Transportation

Research and
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Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

SEP 12 1990

DOT-E 7011
(EIGHTH REVISION)

1. Russell-Stanley Corporation (RSC), Red Bank, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of removable head non-DOT specification polyethylene containers not exceeding 57 gallons capacity each, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on RSC's application dated December 11, 1989 and additional information dated April 3 and June 25, 1990, submitted in accordance with 49 CFR 107.105 and 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Caustic soda, bead, classed as a corrosive material; Waste material, identified as "Phosphoric Acid Purification Sludge Waste #23" (solid), having the basic composition: 2% As₂ S₃; 33% filter acid; 42% P₂ O₅; 23% water and Acetic acid sludge waste, identified as "PG-1 Press Drippings" (liquid), classed as a corrosive material; Ammonium perchlorate in granular form, classed as an oxidizer; other corrosive materials specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Transportation (OHMT) prior to the first shipment.

b. Those corrosive, flammable, poison B and oxidizer solids presently authorized to be packaged in a DOT Specification 21C fiber drum.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.154; 173.217; 173.239a; 173.245b(a)(6); 173.245; 173.365.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification blow-molded high molecular weight polyethylene (PE) container, with a removable PE head, having a rated volumetric

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capacity not exceeding 57 gallons. The removable head must be secured by a steel or polypropylene closing band and clamp. A two inch, spin welded flange with two inch bung may be included in the removable head. The container prepared as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.224-2, as well as the following:

- a. The vibration and compression tests specified in 49 CFR 178.19-7(c)(1) and (2) except the compression test value must be no less than 2400 pounds.
- b. A four-foot drop onto an unyielding surface and impacting the top head.

Reuse of the container must be in accordance with the applicable requirements of 49 CFR 173.28.

8. SPECIAL REQUIREMENTS.

- a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.
- b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
- c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to DOT representative upon request.
- d. Effective January 1, 1991, each container body and cover or lid manufactured under the authority of this exemption must be either (1) permanently marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) permanently marked with a registration symbol designated for a specific manufacturing facility.
- e. The net weight limitations and inside packaging requirements contained in 49 CFR Part 173, Subparts E, F and H for DOT Specification 21C fiber drums apply to packagings authorized under this exemption.
- f. Motor carriers used to transport packages offered in accordance with the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

g. Moisture barrier protection required for certain materials is waived when the drums are used under this exemption.

h. The container body must be marked in accordance with 49 CFR 178.224, except that "DOT-E 7011" must be marked in place of the "DOT-21C" required by that section. Additionally, the cover or lid must be permanently marked "DOT-E 7011".

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. January 31, 1992.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

SEP 12 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.